IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA (CAA)/123 (CHE)/2021

(Under Sections 230 to 232 of the Companies Act, 2013
In the matter of Scheme of Arrangement (Amalgamation)

of

STERLITE PORTS LIMITED
Sipcot Industrial Complex,
Madurai Bye pass Road,
Tuticorin, Thoothukudi,
Tamil Nadu- 628 002
India.

...Applicant/ Transferor Company -1

And

PARADIP MULIT CARGO BERTH PRIVATE LIMITED
Sipcot Industrial Complex,
Madurai Bye pass Road,
Tuticorin, Thoothukudi,
Tamil Nadu- 628 002
India.

... Applicant/ Transferor Company-2

And

MARITIME VENTURES PRIVATE LIMITED
Sipcot Industrial Complex,
Madurai Bye pass Road,
Tuticorin, Thoothukudi,
Tamil Nadu- 628 002
India.

... Applicant/ Transferor Company-3

And

GOA SEA PORT PRIVATE LIMITED
Sipcot Industrial Complex,
Madurai Bye pass Road,
Tuticorin, Thoothukudi,
Tamil Nadu- 628 002
India.

... Applicant/ Transferor Company-4

And

SESA MINING CORPORATION LIMITED
Sesa Ghor, 20 EDC complex
Patto, Panaji
GA- 403 001
India.

...Transferee Company

Order Pronounced ***30th March 2022***

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Mr. Naveen Kumar Murthy, Advocate

ORDER

Per: **SUCHARITHA R, MEMBER (JUDICIAL)**

This is a joint application filed by the Applicant Companies, namely **STERLITE PORTS LIMITED** (hereinafter "Transferor Company-1"), **PARADIP MULIT CARGO BERTH PRIVATE LIMITED** (hereinafter "Transferor Company-2"), **MARITIME VENTURES PRIVATE LIMITED** (hereinafter "Transferor Company-3"), **GOA SEA PORT PRIVATE LIMITED** (hereinafter "Transferor Company-4") (together the "Applicant Companies") and **SESA MINING CORPORATION LIMITED** (hereinafter Transferee Company") with its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation

(hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The said Scheme is placed as Page no. 267-310 in the typed set along with the Application bearing No. CA (CAA)/123 (CHE)/2021.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY – 1	To dispense with	NIL	To dispense with
TRANSFEROR COMPANY – 2	To dispense with	NIL	To dispense with
TRANSFEROR COMPANY – 3	To dispense with	NIL	To dispense with
TRANSFEROR COMPANY – 4	To dispense with	NIL	To dispense with

3. From the certificate of incorporation filed, it is evident that

(i) The Transferor Company-1 is a Public limited company incorporated under the provisions of Companies Act, 1956 on 16.04.2010 with CIN:U40109TN2010PLC084216. The Authorized Share Capital of the Transferor Company-1 is ₹5,00,000 (Rs. Five Lakhs) consisting of 2,50,000 Equity Shares of Rs.2 each. The Issued, Subscribed and Paid-up Capital is ₹5,00,000 (Rs. Five Lakhs) consisting of 2,50,000 Equity Shares of Rs.2 each. The Registered office address of

the Transferor Company – 1 is situated at Sipcot Industrial Complex, Madurai Bye pass Road, Tuticorin, Thoothukudi, Tamil Nadu- 628 002, India.

(ii) The Transferor Company-2 is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 08.02.2011 with CIN: U35100TN2011PTC079116. The Authorized Share Capital is ₹1,00,000 (Rupees One Lakh Only) consisting of 10,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company-2 is ₹1,00,000 (Rupees One Lakh Only) consisting of 10,000 Equity Shares of Rs.10/- each. The Registered office address of the Transferor Company – 2 is situated at Sipcot Industrial Complex, Madurai Bye pass Road, Tuticorin, Tamil Nadu- 628 002, India.

(iii) The Transferor Company-3 is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 20.06.2013 with CIN:U61200TN2013PTC091762. The Authorized Share Capital is ₹1,00,000 (Rupees One Lakh Only) consisting of 10,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company-2 is ₹1,00,000 (Rupees One Lakh Only) consisting of 10,000 Equity Shares of Rs.10/- each. The Registered office address of the Transferor Company – 2 is situated at Sipcot Industrial Complex, Madurai Bye pass Road, Tuticorin, Tamil Nadu- 628 002, India.

(iv) The Transferor Company-4 is a Private Limited company incorporated under the provisions of Companies Act, 2016 on 05.07.2016 with CIN: U63000TN2016PTC111287. The Authorized Share Capital is ₹5,00,000 (Rupees Five lakh Only) consisting of 50,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company-4 is ₹5,00,000 (Rupees Five lakh Only) consisting of 50,000 Equity Shares of Rs.10/- each. The Registered office address of the Transferor Company –4 is situated at Sipcot Industrial Complex, Madurai Bye pass Road, Tuticorin, Tamil Nadu- 628 002, India.

(v) From the certificate of incorporation filed, it is evident that the TRANSFEREE COMPANY is a public company limited by shares incorporated under the provisions of the Companies Act, 1956 on 27.06.1969 with CIN:U13209GA1969PLC000091. The Authorised Share Capital is ₹11,50,00,000 (Rupees Eleven Crore Fifty Lakhs Only) consisting of 11,50,00,000 equity shares of INR 100/- each. The Issued, Subscribed and Paid-up Capital of the Transferee Company 11,50,00,000 (Rupees Eleven Crore Fifty Lakhs Only) consisting of 11,50,00,000 equity shares of INR 100/- each. The Registered office address of the Transferee Company is situated at Sesa Ghor, 20 EDC Complex, Pattao, Panaji , GA- 403 001, India.

4. An affidavit in support of the above application sworn for and on behalf of the Applicant Companies by the following shareholder/ Director are listed hereunder:-

(i) Transferor Company 1, Mr. Navin Kumar Jaju in the capacity of the director and authorized person

(ii) Transferor Company 2, Mr. Challa Venkat Kameshwar Rao in the capacity of authorized person.

(iii) Transferor Company 3, Mr. Benicio Menezes in the capacity of the authorized person.

(iv) Transferor Company 4, Mr. Sauvick Mazumder in the capacity of director and authorized person.

is placed along with the Application and it is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Chennai.

5. **STERLITE PORTS LIMITED**
(TRANSFEROR COMPANY-1)

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed as **Pgs 312-339** and the Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed as **Page no. 311** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed as

page no. 340 of the typed set filed with the application.

(iii) There are **two (2)** Unsecured Creditors and the certificate of the Chartered Accountant certifying the list of Unsecured Creditors is placed as **Page no. 341-342** and the consent Affidavits given by unsecured creditors constituting 99.08% of the total value of credit is placed as **Page no. 343-346** of the typed set filed along with the Application and sought dispensation with holding meeting.

6. **PARADIP MULIT CARGO BERTH PRIVATE LIMITED (TRANSFEROR COMPANY-2)**

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed as **Page No. 348-375** of the typed set filed with the application and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed as **Page no. 347** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed as **Page No. 376** of the typed set filed along with the Application.

(iii) There are **Four (4)** Unsecured Creditors and certifying the list of Unsecured Creditors is placed as **Page no. 377-378** and the consent Affidavits given by

unsecured creditors constituting 99.09% of the total value of credit is placed at **Page no. 379-390** of the typed set filed along with the Application and sought dispensation with holding meeting.

7. **MARITIME VENTURES PRIVATE LIMITED (TRANSFEROR COMPANY-3)**

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed at **Page No. 392-419** and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page no. 391** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Page No. 420** of the typed set filed along with the Application.

(iii) There are **Twenty-Nine (29)** Unsecured Creditors and certifying the list of Unsecured Creditors is placed at **Page no. 421-423** and the consent Affidavits given by unsecured creditors constituting 91.45% of the total value of credit is placed at **Page No 424-503** of the typed set filed along with the Application and sought dispensation with holding meeting.

8. **GOA SEA PORT PRIVATE LIMITED (TRANSFEROR COMPANY-4)**

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed at **Page No. 505-532** and the

Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Page No. 504** of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Page No. 533** of the typed set filed along with the Application.

(iii) There are **One (1)** Unsecured Creditor and certifying the list of Unsecured Creditor is placed at **Page No. 534-535** and the consent Affidavits given by unsecured creditor is placed at **Page No 536-539** of the typed set filed along with the Application and sought dispensation with holding meeting.

9. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

10. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Financial Statements for the year ended 31.03.2020 and Provisional Financial Statements as on 31.03.2020.

11. The Board of Directors of the Applicant Companies vide meeting held on 21.07.2021 have unanimously approved the

proposed Scheme as contemplated above and copies of the resolutions passed thereon have been placed on record by the Applicant Companies.

12. The Appointed date as specified in the Scheme shall be 01.10.2020.

13. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made there under and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

14. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. <u>IN RELATION TO THE TRANSFEROR COMPANY – 1:</u>

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-1 that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with.*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-1 that there is **NIL** Secured Creditor in the Company, hence the necessity of convening a meeting does not arise.

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-1 that there are **two (2)** Unsecured Creditors in the Company and the consent Affidavits obtained from unsecured creditors constituting 99.08% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

B. <u>IN RELATION TO THE TRANSFEROR COMPANY-2 :</u>

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-2 that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-2 that there is **NIL** Secured Creditor in the Company, hence the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-2 that there are Four **(4)** Unsecured Creditors in the Company and

the consent Affidavits obtained from unsecured creditors constituting 99.09% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

C. IN RELATION TO THE TRANSFEROR COMPANY-3:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-3 that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-3 that there is **NIL** Secured Creditor in the Company, hence the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-3 that there are Twenty-Nine **(29)** Unsecured Creditors in the Company and the consent Affidavits obtained from unsecured creditors constituting 91.45% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

D. IN RELATION TO THE TRANSFEROR COMPANY-4 :

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company-4 that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company-4 that there is **NIL** Secured Creditor in the Company, hence the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-4 that there are One (1) Unsecured Creditor in the Company and the consent Affidavits obtained from unsecured creditor having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with.*

15. Accordingly, the Application stands **allowed** and the Applicant Companies are directed to file the second motion Application within a period of fourteen (14) days from the date of this order.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
R. SUCHARITHA
MEMBER (JUDICIAL)

Vinita.K